

Calendar Line 3

Case Name: *Carbajal v. Scratch et al.*
Case No.: 24CV442539

This is a wage-and-hour class and representative action brought by Plaintiff Daniel Albani Carbajal (“Plaintiff”), individually and on behalf of a class of nonexempt, hourly employees, against Robert Fischer, doing business as Scratch, Palo Alto Creamery, Reposado, and The British Banker’s Club (“Defendant”).

The parties have reached a settlement, and the Court has granted Plaintiff’s unopposed motion for preliminary approval of the settlement. Now before the Court is Plaintiff’s unopposed motion for final approval of the settlement. As discussed below, the Court GRANTS the motion and sets a compliance hearing for February 17, 2027 at 2:30 p.m. in Department 5.

I. Legal Standard

A. Class Actions

“In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds in *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs’ case on the merits, balanced against the amount offered in settlement. (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

B. PAGA

Labor Code section 2699, subdivision (l)(2) provides that “[t]he superior court shall review and approve any settlement of any civil action filed pursuant to” PAGA. Where, as

here, a PAGA notice is filed before June 19, 2024, seventy-five percent of any penalties recovered go to the Labor and Workforce Development Agency (“LWDA”), leaving the remaining twenty-five percent for the employees. The trial court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Terms and Administration of Settlement

This case has been settled on behalf of the following class, conditionally certified for settlement purposes at preliminary approval: “All nonexempt hourly employees who worked at any time for Defendant in the State of California from July 5, 2020, through April 15, 2025.” The related group of PAGA Aggrieved Employees consists of all hourly, nonexempt employees employed by Defendant in California at any time during the PAGA Period of April 29, 2023, through April 15, 2025.

Defendant will pay a non-reversionary gross settlement amount of \$225,000. The gross settlement amount includes attorney fees of up to one-third of the gross settlement amount (\$74,925); litigation costs up to \$14,000; a PAGA allocation of \$25,000 (75 percent (\$18,750) of which will be paid to the LWDA and 25 percent (\$6,250) of which will be paid to the Settlement Class); a service payment of up to \$7,000; and settlement administration costs up to \$10,000. The net settlement amount is estimated to be \$94,075 and will be distributed to participating class members on a pro rata basis. The parties have stipulated to modify the settlement agreement such that all uncashed Class and PAGA Aggrieved Employee checks shall be distributed to Legal Aid at Work as the designated *cy pres* recipient, and the Court approves the *cy pres* designation.

In exchange for the settlement, Settlement Class Members who do not timely opt out release Defendant and the Released Parties from the wage-and-hour claims pleaded, or that

could have been pleaded, based on the facts alleged in the operative complaint for the Class Period, and Plaintiff releases the corresponding PAGA claims on behalf of the State. Individual Settlement Payments are allocated based on the number of Compensable Pay Periods each Settlement Class Member worked during the Class Period.

In its order granting preliminary approval, the Court appointed Phoenix Settlement Administrators (“Phoenix”) as settlement administrator. On January 5, 2026, Defendant delivered class data to Phoenix, whose final mailing list contained 567 individuals identified as Class Members. (Lee Decl., ¶ 3.) On January 15, 2026, Phoenix mailed class notices, in English and Spanish, to all 567 Class Members after performing a National Change of Address search. (*Id.*, ¶¶ 4–5.) The deadline to request exclusion from, object to, or dispute pay periods under the settlement was March 2, 2026. (*Id.*, ¶¶ 8–10.) As of the date of Mr. Lee’s declaration, no notices had been returned or deemed undeliverable, and Phoenix had received three timely requests for exclusion, zero objections, and zero pay-period disputes. (*Id.*, ¶¶ 6–10.) There are 564 Settlement Class Members, representing 99.47% of the Class, who collectively worked 14,025 pay periods, valued at approximately \$7.07 per pay period. (*Id.*, ¶ 11.) Phoenix estimates the average settlement share will be approximately \$175.88, with a highest individual payment of approximately \$886.17. (*Id.*, ¶ 14.) The notice process has now been completed.

At preliminary approval, the Court found the settlement to be fair and reasonable. Given that there are no objections and only three exclusions, the Court finds no reason to deviate from its preliminary finding now. Accordingly, the Court finds that the settlement is fair and reasonable for purposes of final approval.

III. Enhancement Awards, Attorney Fees and Costs

Plaintiff requests an enhancement award of \$7,000 and has submitted materials describing his participation in this case, including telephonic meetings with counsel, producing documents, reviewing pleadings, and participating in mediation. (Memorandum, p. 6; Carbajal Decl., ¶¶ 15–16.) The Court finds that a service award is justified, and the amount requested is reasonable. Therefore, the service award is approved in the amount requested.

Plaintiff's counsel seeks an attorney fee award of \$74,925 (one-third of the \$225,000 Gross Settlement Amount). (Memorandum, pp. 17–24.) Plaintiff's attorneys represent they have incurred a lodestar of \$96,422.50 in this action, based on a total of 109.4 hours billed at \$425–950 per hour. (S. Wheeler Decl., ¶¶ 61–64; J. Wheeler Decl., ¶¶ 8–9.) This results in a negative multiplier. The benefits achieved by the settlement support an award of attorney fees to class counsel. The Court approves an attorney fee award in the amount requested.

Plaintiff's counsel requests reimbursement of litigation costs in the amount of \$8,876 and provides an itemized list in support. (Memorandum, pp. 24–25; S. Wheeler Decl., ¶¶ 10, 76-77.) The Court approves reimbursement of litigation costs in the requested amount. Settlement administration costs are likewise approved in the requested amount of \$10,000. (Lee Decl., ¶ 17 and Ex. C.)

IV. Conclusion

The Court GRANTS Plaintiff's motion for final approval and sets a compliance hearing for February 17, 2027 at 2:30 p.m. in Department 5.

Plaintiff shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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Calendar Line 4

Case Name: *Carillo v. ProteinSimple et al.*
Case No.: 25CV460472

This is a putative class and representative action arising from alleged wage and hour violations. In the first amended complaint against defendant ProteinSimple (“Defendant”), plaintiff Juan Carrillo alleges failures to pay minimum and overtime wages, provide compliant meal and rest breaks, timely pay wages during employment and upon termination, provide accurate wage statements, and reimburse business expenses, as well as related claims under Business and Professions Code section 17200 and civil penalties under the Private Attorneys General Act (“PAGA”).

Plaintiff moves for preliminary approval of the class action and PAGA settlement reached by the parties, and the motion is unopposed. As discussed below, the Court GRANTS the motion for preliminary approval, VACATES the Case Management Conference set for 2:30 p.m. on July 15, 2026, and sets a final approval hearing for January 27, 2027 at 1:30 p.m. in Department 19.

I. Legal Standard

“In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds in *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The most important factor is the strength of the plaintiff’s case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Like its review of class action settlements, a trial court must also “review and approve” any settlement of an action filed under PAGA. (Lab. Code, § 2699, subd. (s)(2).) Because the operative PAGA notice here was filed on or after June 19, 2024, sixty-five percent of any penalties recovered goes to the Labor and Workforce Development Agency (“LWDA”), leaving the remaining thirty-five percent for the aggrieved employees. (See Lab. Code, § 2699,